

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The Spanish Agency for Data Protection became aware through the Government Subdelegation of León of certain facts that could violate data protection legislation.

The received document states the following:

The Government Subdelegation in León conveys a complaint from the provincial commissioner of León (DGP) against the owner of an establishment, A.A.A. with NIF ***NIF.1 (hereinafter, the respondent) for posting on the social network Instagram an image obtained from the surveillance cameras of his establishment, where customers of the establishment can be seen, including a minor, as well as members of the State Security Forces, with the caption "****LEYENDA.1".

Along with the notification, a screenshot of the photograph is provided, as well as the complaint document from the Commissioner, which states, among other things, that once the person responsible for the establishment was informed of the possible infringements, he voluntarily proceeded to delete the image from Instagram.

SECOND: On September 15, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of the GDPR.

The initiation agreement was sent, in accordance with the rules established in the LPACAP, by postal notification, which was returned to the sender as unknown on September 21, 2023, as stated in the certificate in the file, proceeding to its publication in the Official State Gazette on September 29, 2023, in accordance with the provisions of Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

THIRD: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

FIFTH: On May 13, 2024, a resolution proposal was made, proposing that the Director impose a fine of €1,000 (one thousand euros) on the respondent for an infringement of Article 6.1 of the GDPR, classified in Article 83.5 of the GDPR.

The resolution proposal was sent, in accordance with the rules established in the LPACAP, by postal notification, which was returned to the sender as unknown on May 24, 2024, as stated in the certificate in the file.

On May 29, 2024, a new sending of the resolution proposal was made, in accordance with the rules established in the LPACAP, by postal notification, with two delivery attempts on June 14 and June 17, 2024, being returned to the sender as "absent during delivery", proceeding to its publication in the Official State Gazette on July 10, 2024, in accordance with the provisions of Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

SIXTH: The resolution proposal was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

PROVEN FACTS

FIRST: It is recorded that, on December 2, 2022, A.A.A. uploaded a photograph to the social network

INSTAGRAM in which customers of the establishment can be seen.

SECOND: It is recorded that, in said photograph, several customers of the establishment can be seen, including a minor, as well as members of the State Security Forces.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and

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guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, according to Article 4.1 of the GDPR, the physical image of a person is a personal data. Thus, its inclusion on websites, forums, publications, that identify or make a person identifiable, constitutes a processing of personal data.

III

Legality of the Processing of Personal Data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that:

"Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency);
(...)"

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow for the consideration of the processing of personal data as lawful are enumerated in Article 6.1 of the GDPR:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public

authorities in the performance of their tasks.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation with regard to processing under paragraph 1, letters c) and e), laying down more precise specific requirements for processing and other measures to ensure lawful and fair processing, including other specific situations of processing under Chapter IX.

3. The basis for the processing referred to in paragraph 1, letters c) and e), shall be laid down by:

a) Union law, or

b) the law of the Member States applicable to the controller.

The purpose of the processing shall be determined in that legal basis or, with regard to the processing referred to in paragraph 1, letter e), shall be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of processing by the controller; the types of data subject to processing; the data subjects affected; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures for processing, including measures to ensure lawful and fair processing, such as those relating to other specific situations of processing under Chapter IX. Union law or the law of the Member States shall pursue a public interest objective and shall be proportionate to the legitimate aim pursued. (...)”

In this regard, Recital 40 of the GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract.”

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In the case at hand, it is considered that the respondent has processed the data of third parties, specifically, has used images from the surveillance cameras of the establishment and uploaded them to the social network Instagram, without the consent of their owners, and without any of the lawful bases for processing required by Article 6.1 of the GDPR being present.

In the image provided by the Government Subdelegation and included in the file, agents of the State security forces can be observed, as well as a minor.

Consequently, in accordance with the evidence available at this moment of resolution, it is considered that the processing of personal data carried out by the respondent, who has taken images of the establishment captured by the surveillance camera to upload them to the social network Instagram, has been carried out without a legitimizing cause as outlined in Article 6 of the GDPR.

IV

Classification and qualification of the infringement of Article 6.1 of the GDPR

The aforementioned infringement of Article 6.1 of the GDPR constitutes an infringement classified under Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

For the purposes of the statute of limitations, Article 72 “Very serious infringements” of the LOPDGDD

indicates:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...)

b) The processing of personal data without any of the lawful conditions for processing established in Article 6 of Regulation (EU) 2016/679.

(...)”

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V

Corrective powers for the infringement of Article 6.1 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 6.1 of the GDPR, allows for the proposal of a sanction of €1,000 (one thousand euros).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €1,000 (one thousand euros).

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the

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National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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